

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 2, Honorable Amber Rosen, Presiding
Audrey Nakamoto, Courtroom Clerk

191 North First Street, San Jose, CA 95113
Telephone 408.882-2120

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

PROBATE LAW AND MOTION TENTATIVE RULINGS

DATE: April 7, 2025

TIME: 10:00 A.M.

*****NOTICE*****

**APPEARANCES IN DEPT. 2 MAY BE IN PERSON OR
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PLEASE GO TO:

https://www.scsccourt.org/general_info/ra_teams/video_hearings_teams.shtml to find the appropriate link.

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Prevailing party shall prepare the order by e-file, unless stated otherwise below

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TROUBLESHOOTING TENTATIVE RULINGS

If do not see this week's tentative rulings, they have either not yet been posted or your web browser cache (temporary internet files) is accessing a prior week's rulings. "REFRESH" or "QUIT" your browser and reopen it, or adjust your internet settings to see only the current version of the web page. *Your browser will otherwise access old information from old cookies even after the current week's rulings have been posted.*

LINE #	CASE #	CASE TITLE	RULING
LINE 1	24PR197996	<i>The Trust of John Mota</i>	Click or scroll to line 1 for tentative ruling.
LINE 2	24PR198682	<i>The Conservatorship of Marcia McKenna</i>	See Tentative Ruling. Court will issue final ruling.
LINE 3			
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Calendar line 1**Case Name:** *The Trust of John Mota***Case No.:** 24PR197996**INTRODUCTION**

Petitioner Lisa Luca (“Petitioner”) initiated this case, filing a petition to contest the Mota Trust based on undue influence, lack of capacity, and financial elder abuse. The petition also sought return of trust property and an injunction preventing the use of trust funds for the defense. The petition named as respondent Pamela Milligin (“Respondent”), trustee of the Mota Trust. Milligin has filed an opposition to the petition.

Currently before the court is Petitioner’s counsel’s motion to appear *pro hac vice*. The motion is unopposed.

DISCUSSION**I. Legal Background****A. Eligibility**

“A person who is not a licensee of the State Bar of California but who is an attorney in good standing of and eligible to practice before the bar of any United States court or the highest court in any state, territory, or insular possession of the United States, and who has been retained to appear in a particular cause pending in a court of this state, may in the discretion of such court be permitted upon written application to appear as counsel *pro hac vice*, provided that an active licensee of the State Bar of California is associated as attorney of record. No person is eligible to appear as counsel *pro hac vice* under this rule if the person is: (1) A resident of the State of California; (2) Regularly employed in the State of California; or (3) Regularly engaged in substantial business, professional, or other activities in the State of California.” (Cal. Rules of Court, rule 9.40(a), formatting altered.)

B. Application

“A person desiring to appear as counsel *pro hac vice* in a superior court must file with the court a verified application together with proof of service by mail in accordance with Code of Civil Procedure section 1013a of a copy of the application and of the notice of hearing of the application on all parties who have appeared in the cause and on the State Bar of California at its San Francisco office. The notice of hearing must be given at the time prescribed in Code of Civil Procedure section 1005 unless the court has prescribed a shorter period.” (Cal. Rules of Court, rule 9.40(c)(1).)

The application must state:

- (1) The applicant’s residence and office address;
- (2) The courts to which the applicant has been admitted to practice and the dates of admission;

- (3) That the applicant is a licensee in good standing in those courts;
- (4) That the applicant is not currently suspended or disbarred in any court;
- (5) The title of each court and cause in which the applicant has filed an application to appear as counsel *pro hac vice* in this state in the preceding two years, the date of each application, and whether or not it was granted; and
- (6) The name, address, and telephone number of the active licensee of the State Bar of California who is attorney of record.

(Cal. Rules of Court, rule 9.40(d).)

II. Merits of the Instant Motion

Here, Petitioner's counsel to be appearing *pro hac vice* has filed a sworn application providing all of the necessary information. Counsel appears to be eligible based on the sworn application. The proof of service attached to the application shows timely service on Respondent, the only other party to appear in this case, as well as other interested parties. No opposition has been filed. Accordingly, the motion is GRANTED.

CONCLUSION

The motion to appear *pro hac vice* is GRANTED.

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Calendar line 2**Case Name:** *The Conservatorship of Marcia McKenna***Case No.:** 24PR198682**INTRODUCTION**

On November 25, 2024, Petitioner Michelle McKenna (“Petitioner”) initiated this case filing a petition for probate conservatorship over her stepmother Marcia McKenna (“Proposed Conservatee”). On February 6, 2025, Petitioner filed a petition for temporary conservatorship over the person and the estate of Proposed Conservatee pending hearing on the petition. On February 13, 2025, Reginald Coates (“Objector”), Proposed Conservatee’s brother, who holds a power of attorney allowing him to make decisions on behalf of Proposed Conservatee, filed an objection to the petition for probate conservatorship.

On February 18, 2025, this court granted the petition for temporary conservatorship. On March 18, 2025, letters of temporary conservatorship issued to Petitioner.

Currently before the court is Objector’s motion for reconsideration of the order granting the temporary conservatorship. The motion is opposed.

DISCUSSION**III. Legal Background**

Objector makes his motion for reconsideration under Code of Civil Procedure section 1008.¹ Section 1008 provides, “When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order.” (§ 1008, subd. (a).) “The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (§ 1008, subd. (a).)

“Section 1008, subdivision (a) requires that a motion for reconsideration be based on new or different facts, circumstances, or law. A party seeking reconsideration also must provide a satisfactory explanation for the failure to produce the evidence at an earlier time. [Citation.]” (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212.) “The burden under section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at the trial. [Citation.]” (*Id.* at pp. 212-213.)

¹ All further undesignated statutory references are to the Code of Civil Procedure.

“An order denying a motion for reconsideration is interpreted as a determination that the application does not meet the requirements of section 1008. If the requirements have been met to the satisfaction of the court but the court is not persuaded the earlier ruling was erroneous, the proper course is to grant reconsideration and to reaffirm the earlier ruling.” (*Corns v. Miller* (1986) 181 Cal.App.3d 195, 202.)

IV. Merits of the Instant Motion

Objector contends that the court did not consider his objection to Petitioner’s petition for conservatorship prior to entering its order granting the temporary conservatorship.² He further asserts that his counsel was only able to provide the court with a truncated version of the facts in support of his objection at the hearing on the temporary conservatorship. Finally, he argues that new circumstances have arisen since the court issued its February 18, 2025 order granting the temporary conservatorship because Petitioner allegedly provided an unfiled copy of the letters of temporary conservatorship to Proposed Conservatee, instructing her that she could use the letters to leave the memory care facility where she currently resides.

It has been held that “new circumstances” within the meaning of section 1008 were shown by evidence the court failed to consider Objector’s objections to the conservatorship in connection with its prior ruling. (*Johnston v. Corrigan* (2005) 127 Cal.App.4th 553, 556.) But after learning that the court had not seen the objections, Counsel for Objector did not seek a continuance to allow the court to consider his 123-page objection. Rather, Counsel for Objector chose to proceed with the hearing and orally make his objections. Moreover, Objector does not now explain which facts he did not present or how those facts would have made a difference to the outcome of the petition for temporary conservatorship. Accordingly, the court does not find that the failure to consider the written objections provides a basis for reconsideration in this case given that the Objector was able to object and have his oral objections considered at the hearing.

Objector also argues that the court may not appoint a conservator unless the court finds that there are no less restrictive means of protecting the proposed conservatee and that the court must find that a conservatorship is necessary based on clear and convincing evidence. While these are correct statements of the law governing the ultimate determination of whether to appoint a conservator, Objector misstates the standard for appointing a temporary conservator pending the outcome of the petition for conservatorship. (See Probate Code section 2250, subdivision (b) which provides, “The petition shall state facts that establish good cause for appointment of the temporary guardian or temporary conservator. The court, upon that petition or other showing as it may require, may appoint a temporary guardian of the person or estate, or both, or a temporary conservator of the person or estate, or both, to serve pending the final determination of the court upon the petition for the appointment of the guardian or conservator.” See also *Guardianship of C.E.*, *supra*, 31 Cal.App.5th at p. 1048, fn. 6 [court may appoint temporary conservator on a showing of good cause].)

² “During the pendency of the guardianship proceeding, the court can appoint a temporary guardian upon a showing of ‘good cause.’ (Prob. Code, § 2250, subd. (b).) A temporary guardian has only those powers and duties ‘that are necessary to provide for the temporary care, maintenance, and support of the ward ...’ (Prob. Code, § 2252, subd. (a).)” (*Guardianship of C.E.* (2019) 31 Cal.App.5th 1038, 1048, fn. 6.)

In her petition for appointment of a temporary conservator, Petitioner represented that Objector holds a power of attorney for Proposed Conservatee, allowing him to make healthcare and financial decisions but Proposed Conservatee had lost all faith in Objector as a decisionmaker. The petition stated that Objector had sold Proposed Conservatee's home without consulting her and without her consent. It further asserted that Objector isolated Proposed Conservatee from her friends and family and failed to provide them with information about Proposed Conservatee. Finally, it alleged that Objector failed to comply with a court order for an evaluation of Proposed Conservatee's capacity. Considering the petition, the confidential assessment by the court investigator filed February 10, 2025, as well as the arguments of counsel for all parties, including Proposed Conservatee's counsel, the court granted the petition for temporary conservatorship until April 15, 2025.

Objector provides the declaration of his counsel, which states as follows: "Between February 17 and February 22nd, someone provided Marcia with a non-filed endorsed copy of the proposed (non-issued) Letters of Conservatorship and instructed Marcia that she could use the Letters to leave the Morningstar Care Facility where she is currently living and be released on her own recognizance. The Morningstar Staff made a copy of the document Marcia provided and emailed it to Reggie, who then emailed it to me." (Declaration of Qalim Cromer in Support of Motion for Reconsideration ("Cromer Decl."), ¶ 8.) The declaration goes on to state, "On February 22, 2025, Morningstar staff urgently contacted Reggie, expressing grave concern over Marcia's attempt to leave the facility. They informed Reggie that releasing Marcia posed a safety risk, as no prior communication or arrangements had been made with Morningstar regarding her care. The facility asserted that a resident like Marcia, who has dementia and is unable to walk, could only be discharged if their care and safety was ensured, and it was evident this was not the case." (*Id.*, ¶ 9.) Objector contends that only Petitioner could have done this.

In her opposition, Petitioner admits that she showed an unfiled copy of the letters of conservatorship to Proposed Conservator and concedes that the copy may have been left behind at Proposed Conservatee's residence. (Opposition to Motion for Reconsideration, ¶ 4.)³ But, she maintains that she did not inform Proposed Conservatee that she could use the copy to leave the memory care facility. (*Id.*, ¶ 5.) In reply, Objector provides more details regarding the alleged attempt to leave the facility. He asserts that on February 21, 2025, a staff member from the memory care facility named Stefaney Guest-Brown left him a voicemail indicating that someone had come to the facility representing that they were the new conservator, provided the unfiled copy of the letters to the staff, and stated an intention to remove Proposed Conservatee from the facility that evening. (Declaration of Reginald Coates in Support of Motion, ¶¶ 12-13.)

Because the court finds these allegations concerning, Petitioner is reminded that she did not request authority to change Proposed Conservatee's residence pursuant to Probate Code section 2253 and the court has not authorized her to do so at this time.⁴ Petitioner may not

³ The court notes that Petitioner's opposition is verified by Petitioner under penalty of perjury.

⁴ Probate Code section 2253, subdivision (a) provides, "If a temporary conservator of the person proposes to fix the residence of the conservatee at a place other than that where the conservatee resided before the commencement of the proceedings, that power shall be

remove Proposed Conservatee from her current residence without a court order pursuant to Probate Code section 2253.

Also concerning are Objector's allegations that Proposed Conservatee has missed doctor's appointments and required emergency care on three occasions since Petitioner's appointment. The court notes, however, that these facts, raised for the first time in reply, are not generally to be considered as doing so deprives the other party of an opportunity to respond. Moreover, it is precisely because the court does not have the full set of facts that the temporary order granted on February 18, 2025, is a *temporary* order. The time for presenting evidence to this court is at the hearing on the petition for the general conservatorship. At that time the court will consider non-hearsay evidence subject to cross-examination. The court does not find that the Objector has met his burden to obtain a reconsideration of the prior court order. The motion is DENIED.

Petitioner is reminded, however, of the limited nature of her powers under the letters of temporary conservatorship.

CONCLUSION

The Motion for Reconsideration is DENIED. The Court will issue the final ruling.

requested of the court in writing, unless the change of residence is required of the conservatee by a prior court order. The request shall be filed with the petition for temporary conservatorship or, if a temporary conservatorship has already been established, separately. The request shall specify in detail the place to which the temporary conservator proposes to move the conservatee, the precise reasons that the petitioner or temporary conservator has concluded that the conservatee will suffer irreparable harm if the change of residence is not permitted, and why no means less restrictive of the conservatee's liberty will suffice to prevent that harm." (Prob. Code, § 2253, subd. (a).) Probate Code section 2253 also requires an investigation by the court investigator and a hearing on the change in residence. (Prob. Code, § 2253, subds. (b)&(c).)